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SETTLEMENT AGREEMENT, RELEASE AND WAIVER

This Settlement Agreement, Release and Waiver (hereinafter “Agreement”) is entered into between _____ (“Parents”), individually and on behalf of their son, _____ (“Student” or “_____”), and the Brecksville-Broadview Heights City School District Board of Education (“District” or “Board”) (collectively, “Parties”).

In consideration of and for the promises and mutual covenants contained herein, the Parties agree as follows:

1. _____ qualifies for special education and related services as a child with a disability pursuant to the Individuals with Disabilities Education Improvement Act (“IDEA”) under the category of Specific Learning Disability. In order to avoid any potential disagreement over _____’s educational programming and/or placement for the 2020-2021 and 2021-2022 school years, and any potential expense, inconvenience or acrimony associated with a due process hearing that might result from said disagreement, the Parties determine it is in their mutual best interests to enter into this Agreement.
2. This Agreement covers the 2020-2021 and 2021-2022 school years.
 - a. Given Parents’ intent to continue their unilateral parental placement of _____ at Lawrence School (“Lawrence”) for the 2020-2021 and 2021-2022 school years, the District agrees to pay tuition, on behalf of Parents, to Lawrence in an amount not to exceed twenty thousand dollars (\$20,000) for the 2020-2021 school year, and twenty thousand dollars (\$20,000) for the 2021-2022 school year. The maximum amount to be paid by the District is based upon Lawrence delivering in-person instruction; if due to the COVID-19 pandemic Lawrence is unable to deliver in-person instruction for part or all of the 2020-2021 and/or 2021-2022 school year(s), including the use of a hybrid schedule that provides for students attending school fewer than five (5) days per regular school week, the Parties reserve the right to negotiate with Lawrence a reduced tuition to reflect the reduction in the number of days of instruction and/or the lower costs associated with providing online/virtual instruction (i.e., remote learning). If Lawrence agrees to a reduction, or otherwise reduces its standard tuition, the Parties shall proportionally share in the reduction (e.g., if the total tuition for a year at Lawrence is \$30,000, and the District is ordinarily responsible for \$20,000 (i.e., two-thirds of the total), and the tuition is reduced by \$3,000, the District’s obligation under this agreement will be reduced by \$2,000, and Parents will be entitled the remaining portion of the reduction). If the Parties are unable to secure a reduction in the annual tuition, the District will remain obligated to pay up to the maximum amount set forth above (i.e., \$20,000).

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Parents shall direct Lawrence to provide the District Director of Pupil Services with copies of all invoices related to the tuition. The District's payments will be made directly to Lawrence based upon receipt of monthly or quarterly invoices from Lawrence, whichever is Lawrence's standard practice. The District will make payment to Lawrence within twenty (20) business days of the Director of Pupil Services receiving Lawrence's invoices.

Parents agree that _____ will remain enrolled in the District during the pendency of this Agreement. Parents further agree that for any school year in which Parents and/or Student accept the District making the payments set forth above, Parents and/or Student waive their right to apply for the Jon Peterson Special Needs Scholarship. Parents further agree that for any period of time covered by this Agreement in which they seek contributions above and/or beyond that which is expressly set forth above, the District's payment obligations under this Agreement shall immediately terminate.

Parents agree to assume full responsibility for all other costs associated with _____ education during the 2020-2021 and 202-20220 school years, including, but not limited to, additional tuition and/or fees charged by Lawrence, private therapies, transportation to and from Lawrence, and/or home-based services.

- b. Parents shall be responsible for transporting _____ to and from Lawrence for the 2020-2021 and 2021-2022 school years. Parents shall not seek and hereby waive their ability to request reimbursement from the District for the costs associated with transporting _____ to and from Lawrence.
- c. By allowing the District to make payments to Lawrence on their behalf pursuant to Paragraph 2.a., Parents waive all claims they may otherwise have had against the District relating to _____'s education through the end of the 2021-2022 school year.
- d. Parents affirm that they selected Lawrence, _____ attendance at Lawrence is pursuant to a unilateral parental placement, and Lawrence was not determined by _____ IEP team to be his least restrictive environment ("LRE"). As such, Parents agree that the District shall not be responsible for the efficacy of the educational program provided to _____ by, through, or at Lawrence, and that they shall have no right to seek compensatory education or other relief from the District

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because of any real or perceived failures by Lawrence. See Paragraphs 2.e., 2.f., and 3, below _____ may return to school in the District anytime and forego payment of any remaining funds otherwise authorized by this Agreement).

- e. The District's obligation to pay to Lawrence the amounts identified in Paragraph 2.a. is contingent upon Parents complying with their responsibilities under this Agreement and shall automatically terminate if _____ is no longer enrolled in or attending Lawrence (i.e., Student withdraws from, is removed from, or otherwise ceases to be enrolled in Lawrence), or if Parents no longer reside in the District. Such termination shall have no effect upon the District's obligation to provide the payments in Paragraph 2.a. for educational services provided to _____ by Lawrence prior to the date he is no longer enrolled in or no longer attending Lawrence, or Parents no longer reside in the District. If _____ stops attending Lawrence for any reason during the 2020-2021 or 2022-2023 school years, and Parents continue to reside in the District, Parents must notify the District in writing within five (5) school days, and the District will offer to implement the 1/29/2020 IEP until such time as a new IEP can be developed. The new IEP will be developed within twenty (20) school days of _____ returning to school in the District. See Paragraph 3. Parents waive their right to challenge the appropriateness of the 1/29/2020 IEP, during the twenty (20) school days while a new IEP is being developed. Parents retain the right to challenge the appropriateness of the new IEP, after it is developed and offered by the District. Parents must notify the District within five (5) business days of Parents moving out of the District (i.e., ceasing to be residents of the District).
- f. Because Parents have unilaterally placed _____ at Lawrence for the 2020-2021 and 2021-2022 school years, Parents expressly waive the right to convene an annual IEP team meeting during either school year, except as provided below. The District, however, will annually issue a new IEP that is substantively identical to the 1/29/2020 IEP, but with a new Meeting Date to ensure the District complies with its legal obligation to have a current IEP in place for Student.

If _____ fails to graduate from Lawrence at the conclusion of the 2021-2022 school year, the Parties agree to meet no later than May 15, 2022, to determine whether he is eligible to graduate from the District. If he is not, the Parties will develop a 2022-2023 IEP for _____. See also Paragraph 3 below – the District will convene an IEP team meeting sooner if _____ returns to school in the District prior to the end of the 2021-2022 school year. If it becomes necessary to develop a

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2022-2023 IEP for Student, the Parties agree to work cooperatively, collaboratively and in good faith to develop it. If Parents disagree with the 2022-2023 IEP, and file a due process complaint regarding such IEP, the Parties agree (as stated in Paragraph 2.h. below) that Lawrence shall not be Student's "then-current educational placement (i.e., initial "stay-put" or "pendency placement"). Under such circumstances, "stay-put" or "pendency placement" shall be the placement identified in sections 7 and 11 of the 1/29/2020 IEP.

- g. Parents agree to provide releases allowing the District to receive all education records (including, but not limited to, all progress reports, report cards, programming data, assessments, consultant's reports, and/or evaluations) prepared by Lawrence during the 2020-2021 and 2021-2022 school years. Parents also consent to quarterly observations of Student at Lawrence by District employees or representatives during the 2020-2021 and/or 2021-2022 school years. Parents shall receive at least seventy-two (72) hours advanced notice of the observations. If the District requires assistance from Parents to obtain educational information about Student from Lawrence, the District will advise Parents of the need and provide Parents with specific guidance as to the nature of the assistance needed, and Parents will act in good faith to provide such assistance.
- h. Parents understand and agree that placement at Lawrence is unilateral on their part and is not deemed "initial stay-put," or "stay-put" or "initial/pendency placement" should Parents disagree with any IEPs developed by the District pursuant to this Agreement, including any IEP developed by the District pursuant to Paragraph 2.f. or Paragraph 3, and challenge the IEP or file any administrative or judicial proceeding regarding such IEP. The Parties agree that the parentally selected placement shall not be "then-current educational placement" (i.e., initial "stay-put" or "pendency placement"). Under such circumstances, "stay-put" or "pendency placement" shall be the placement identified in the 1/29/2020 IEP. The "stay-put" or "pendency placement" during any subsequent dispute may be changed as authorized by the IDEA and its implementing regulations (i.e., through a decision of the State Level Review Officer or through an agreement between the District and Parents).
- i. Parents agree to assume full responsibility for federal, state, and local taxes and other payments, if any, owed on the amounts paid by the District, on behalf of Parents, to Lawrence pursuant to this Agreement. While the District will report to the Internal Revenue Service ("IRS") the amounts paid to Lawrence pursuant to this

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Agreement by issuing a Form 1099-MISC to Lawrence, the District will not issue to Parents a Form 1099-MISC, and no withholdings will be made from the amounts paid by the District to Lawrence pursuant to this Agreement. If it is later determined by the IRS or another governmental authority that the District should have withheld taxes from the amounts paid by it to Lawrence pursuant to this Agreement, Parents agree to indemnify and hold the District harmless for the amount of such taxes, and to reimburse the District for any penalties and/or interest assessed against the District as a result of it failing to withhold the taxes on said payments.

- j. The payment for educational services in Paragraph 2.a. shall not be construed as an admission by the District that such services are necessary or appropriate for the provision of a FAPE to _____ and shall not be construed as a private placement by the District.
 - k. Parents expressly waive their right to request a publicly funded independent educational evaluation related to the reevaluation/ETR completed by the District on January 29, 2020. Nothing herein shall prevent Parents from obtaining a self-funded independent educational evaluation and presenting it to _____ EP team for consideration.
3. The Parties agree that for any school year or period referenced in this Agreement, Parents and/or Student have the right to decline the settlement terms and amounts specified in Paragraph 2.a., and to have Student educated in the District and to be served under the IDEA. If Parents and/or Student accept payment for any year or time-period referenced in Paragraph 2.a., claims for that specific year and/or time-period, including any right to access a FAPE from the District, are waived for the period covered by the payments in accordance with the terms of the Agreement.
- Nothing herein shall prevent _____ from returning to and attending the District's schools for implementation of a new IEP that will be developed within twenty (20) school days of _____ turning to school in the District. In the interim, while the new IEP is being developed, the District will implement the 1/29/2020 IEP. Parents waive their right to challenge the appropriateness of the 1/29/2020 IEP during the period while a new IEP is developed. Parents retain the right to challenge the appropriateness of the new IEP, after it is developed and offered by the District.
4. This Agreement is not precedent setting. The Parties expressly agree that this Agreement shall have no bearing on _____ current and future educational programming and educational placement, except as expressly stated herein. As such, Parents agree that they

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are prohibited from introducing this Agreement, or the payments made by the District in accordance with this Agreement, in any future due process proceeding to establish need for placement outside of the District.

5. This Agreement and all payment obligations existing hereunder are contingent upon Parents and Student residing in the District, and upon the District being provided records and access to Student in accordance with Paragraph 2.g., above. If Parents and/or Student no longer reside in the District, or if releases for education records and/or access to Student are not provided by Parents, the District's payment obligations shall terminate after a fourteen (14) calendar day period in which Parents can cure said failure(s). Nothing contained in this Agreement shall be construed to preclude Student and/or Parents from forfeiting payment(s) provided hereunder and returning to the District for an education.
6. I _____ and/or his legal guardian or representative(s), as designated by a Court or Parents, ever initiate any legal proceedings seeking to invalidate or set aside all or any portion(s) of this Agreement, other than an action for breach of this Agreement, Parents shall hold the District harmless and indemnify the District for any liability, judgment, legal fees, or other costs and expenses arising from such legal proceedings. To the extent permitted by law, any challenge to this Agreement must be brought in Federal District Court.
7. Parents expressly acknowledge that this Agreement is effective through the end of the 2021-2022 school year, and that circumstances may change. Parents further acknowledge and agree that they assume the risk of any changes in circumstance and that this Agreement shall not be invalidated by any such change(s).
8. The payments identified in Paragraph 2.a. shall be made in a timely manner in accordance with the terms of that Paragraph. Parents specifically waive any right to interest or late fees on the amount of settlement for any delay in payment from the date of settlement until the date payment is due in accordance with the terms of this Agreement, and specifically release and discharge the District and Peters, Kalail & Markakis Co., L.P.A., including all of their predecessors, successors, assigns, officers, employees and agents, and each of them, in both their individual and official capacities, from any claim or demand for interest on the settlement amount to which the Parents may or may not otherwise be entitled in accordance with *Hartmann v. Duffey*, 95 Ohio St.3d 456 (2002).
9. In consideration of the promises and commitments of the Board, as set forth in this Agreement, Parents, on their own behalf and on behalf of _____, agree that all the issues that could have been raised in a request for an impartial due process hearing and/or an administrative or judicial proceeding are resolved by this Agreement. Parents, on their own behalf and on behalf of _____ forever release and discharge the Board, including

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individual Board members, employees, and agents in their official capacities, (collectively referred to as "The Board and its Agents"), from any and all claims, demands, actions, causes of actions or suits at law or in equity of whatsoever kind and nature (including administrative complaints with the Ohio Department of Education and the United States Department of Education Office for Civil Rights, including claims of discrimination or retaliation under Section 504), which Parents and/or _____ may have had, now have, or may now or hereafter assert against the Board and its Agents for the entire period prior to and up to the date of the signing of this Agreement, with respect to _____ and his education in or through the District (i.e., the District's provision of a free appropriate public education to _____ and their participation in _____ educational programming. This comprehensive waiver of claims includes, but is not limited to, claims relating to education, special education, related services, transportation, tuition, room and board, reimbursement, compensatory education, damages (including related to claims of discrimination or retaliation), therapy, independent evaluations, and attorneys' fees. This release of claims shall run through the end of the 2021-2022 school year (provided _____ remains enrolled at Lawrence through the end of the 2021-2022 school year). If _____ returns to the District prior to May 31, 2020, this Agreement will apply through the date he returns to school in the District. This discharge of any liability includes, but is not limited to, a release of all claims arising under Section 1983 of the Civil Rights Act (42 U.S.C. § 1983), 20 U.S.C. §§ 1400 et seq. (i.e., the Individuals with Disabilities Education Improvement Act), Section 504 of the Rehabilitation Act (29 U.S.C. § 794), the Americans with Disabilities Act (42 U.S.C. § 12101), Ohio Revised Code Chapter 3323, other civil rights laws, regulations that implement the above-referenced statutes, and the U.S. Constitution and Ohio Constitution. Notwithstanding the preceding, Parents retain their rights under applicable laws and regulations to enforce this Agreement.

10. Parents expressly waive their right to initiate a complaint with the Ohio Department of Education ("ODE") relating to any aspect of _____ education arising on or before the date this Agreement is executed. Parents further agree that ODE does not have jurisdiction to investigate or rule upon any complaints brought by Parents relating to any aspects of Student's education arising on or before the date of execution of this Agreement. Additionally, Parents waive their right to file a complaint with the U.S. Department of Education's Office for Civil Rights ("OCR") concerning any aspect of Student's education arising on or before the date of execution of this Agreement (including claims of discrimination or retaliation pursuant to Section 504). Parents confirm that any issue/claim that could have been brought before ODE or OCR has been resolved.
11. Parents (individually and on behalf of _____) agree to keep the existence of this Agreement and the terms and content of this Agreement confidential, and will not release it or discuss it, in writing or orally, with third parties. Specifically, Parents agree not to share

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this Agreement or the terms of this Agreement with anyone other than the following: (a) Lawrence personnel necessary to facilitate implementation of this Agreement; (b) Parents' attorneys, accountants, financial advisors, and tax advisors; and (c) courts, impartial hearing officers, and mediators as necessary. Parents shall direct the individuals and organizations referenced in (a) and (b) to keep this document and its terms confidential, and that this document constitutes a student education record that is protected under state and federal laws. The Parties agree that the terms of Paragraph 2.a. (for the limited and express purpose of securing invoices/billing records from Lawrence concerning educational programming/services), and Paragraph 2.g. (for the purpose of securing cooperation and collaboration from Lawrence in providing education records and observations) may be shared with Lawrence. If asked about their dispute with the Brecksville-Broadview Heights City School District, Parents shall respond only that it has been satisfactorily resolved. If it is determined by a court of competent jurisdiction that Parents violated this Paragraph, the court will have authority to award appropriate relief, which may include terminating the District's financial obligations under this Agreement and/or ordering Parents to refund all monies paid pursuant to this Agreement. The District specifically acknowledges that — mere attendance at Lawrence or presence as a student in Lawrence's program does not constitute a breach of the terms of this provision. The District further acknowledges its responsibility to keep this Agreement confidential pursuant to federal and state law as an educational record.

12. The District and Parents agree that the provisions of this Agreement can only be modified through mutual agreement as evidenced by a document signed by both parties that serves as a supplement to this Agreement.
13. The Parties acknowledge that they have read this Settlement Agreement, Release and Waiver, and fully understand its provisions. The Parties further acknowledge that they have had an opportunity to consult with legal counsel of their choosing to consider its terms before signing this Agreement. The Parties further declare and acknowledge that no promises or agreements not expressly included in this Agreement have been made and that this Settlement Agreement, Release and Waiver contains the entire agreement between the Parties. The Parties affirm they are signing this Agreement of their own free and voluntary will.
14. This Agreement does not represent or constitute, nor shall it be construed as, an admission of liability or wrongdoing by the Board, its agents, employees or successors, with respect to any claims Parents could have raised with respect to entitlement to a free appropriate public education. The Board expressly denies that it has done anything wrong or unlawful.

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15. This Agreement is comprehensive with respect to the sums to be paid to and/or on behalf of Parents, and Parents agree that neither they nor their attorney(s) shall make an application to a court for, or in any other manner seek, fees and/or costs in connection with development and/or review of this Agreement. The Parties shall bear their own costs in connection with this matter.
16. This Agreement is subject to approval by the Board of Education, which will consider this matter no later than August 26, 2020.

Date: _____

By: _____

For himself and on behalf of

Date: _____

By: _____

For herself and on behalf of

Date: _____

By: _____

Joelle Magyar, Superintendent

On behalf of the Brecksville-Broadview Heights City
School District Board of Education

Date: _____

By: _____

Cynthia Tomassetti, Director of Pupil Services

On behalf of the Brecksville-Broadview Heights City
School District Board of Education